

25CV03320 Gary Craigwell vs Jacob Samuel Bartlett

County: santa-barbara

Division: Civil Law & Motion

Department: 5 SB-Anacapa

Hearing date: 2026-09-28

Motion: Motions to Compel (2)

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Tentative Ruling: Gary Craigwell vs Jacob Samuel Bartlett

Case Number

25CV03320

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 09/28/2026 - 10:00

Nature of Proceedings

Motions to Compel (2)

Tentative Ruling

Gary Craigwell v. Jacob Samuel Bartlett

Case No. 25CV03320

Hearing Date: September 28, 2026

HEARING: 1. Plaintiff Gary Craigwell's Motion to Compel Further Responses to Requests for Admission, Set Two; Request for Monetary Sanctions

2. Plaintiff Gary Craigwell's Motion to Compel Further Responses to Special Interrogatories, Set Two, and Form Interrogatory No. 17.1; Request for Monetary Sanctions

ATTORNEYS: For Plaintiff Gary Craigwell: Maryanne B. Cooper, Miles B. Cooper, Andrea G. Posey, Corey W. Jollie, Coopers LLP

For Defendant Jacob Samuel Bartlett: Delmas A. Woods, Resnick & Louis P.C.

TENTATIVE RULING:

Plaintiff's motion to compel further responses to requests for admission, set two, and request for monetary sanctions is granted.

Defendant Jacob Samuel Bartlett shall serve verified, code-compliant further responses, without objections, to requests for admission Nos. 26, 27, 31, 37, 38, 41, and 42 no later than October 5, 2026.

Monetary sanctions are imposed against Jacob Samuel Bartlett and his attorney of record, Resnick & Louis P.C., jointly and severally, in the amount of \$960.00, payable to plaintiff's attorney of record no later than October 19, 2026.

Plaintiff's motion to compel further responses to special interrogatories, set two, and form interrogatory No. 17.1, and request for monetary sanctions is granted in part and denied in part.

Plaintiff's motion to compel a further response to special interrogatory No. 41 is granted. Defendant Jacob Samuel Bartlett shall serve a verified, code-compliant further response, without objections, to special interrogatory No. 41 no later than October 5, 2026.

Plaintiff's motion to compel a further response to form interrogatory No. 17.1 is denied.

No monetary sanctions are imposed against or in favor of either party with respect to the motion to compel further responses to interrogatories.

Background:

This action commenced on May 29, 2025, by the filing of the original complaint by plaintiff Gary Craigwell against defendant Jacob Samuel Bartlett for negligence and negligence per se. On June 11, 2025, plaintiff filed the operative first amended complaint (FAC) against defendant setting forth the same two causes of action.

As alleged in the FAC:

On February 11, 2024, at approximately 6 p.m., plaintiff had just dropped a passenger off at the Santa Barbara airport and was driving back toward Santa Barbara traveling eastbound on Hollister Avenue. (FAC, ¶ 7.) At the same time, defendant was driving his vehicle westbound on Hollister Avenue at a high rate of speed, weaving in and out of the traffic lanes, revving his vehicle's engine, and appeared to be racing his vehicle with another vehicle. (Id. at ¶¶ 8, 9.)

Defendant was traveling at approximately 70 mph, in a 45 mph zone, when he lost control of his vehicle, struck a palm tree in the center median, and crossed over into oncoming traffic where he collided head-on with the driver's side of plaintiff's vehicle. (FAC, ¶ 10.) The impact caused the airbags in plaintiff's vehicle to deploy, plaintiff's body was "thrust about," and plaintiff's vehicle was pushed sideways across the roadway. (Id. at ¶ 11.) As a result, plaintiff suffered serious injuries to his head, neck, shoulder, and arm. (Id. at ¶ 12.)

The 22 year old defendant has a history of speeding and reckless driving, with little regard for the safety of others on the roadway, and 10 months after the subject collision that injured plaintiff, defendant was cited for driving 103 mph in a 65 mph zone. (FAC, ¶ 14.) Despite prior violations and the incident that caused plaintiff's injuries, defendant continues to operate his vehicle in a dangerous manner and in reckless disregard for public safety. (Id. at ¶ 15.)

"At the time of the crash, Defendant BARTLETT was driving at an excessive rate of speed (70mph in a 45mph zone), engaging in illegal street racing on a public roadway, weaving in and out of traffic lanes, failing to maintain control of his vehicle, and driving in a manner that endangered the safety of persons and property. Defendant BARTLETT acted with conscious disregard in his willful, wanton, grossly negligent, careless, and reckless conduct, that result[ed] in serious injuries to Plaintiff CRAIGWELL." (FAC, ¶ 25.)

"The conduct of Defendant BARTLETT was despicable and subjected Plaintiff to cruel and unjust hardship in conscious disregard of Plaintiff's rights. Pursuant to California Civil Code section 3294, Plaintiff is entitled to recover punitive damages from Defendant BARTLETT in an amount according to proof." (FAC, ¶ 26.)

On April 6, 2026, plaintiff propounded requests for admission, set two (RFAs), special interrogatories, set two (SROGs), and form interrogatories, set two (FROGs) on defendant. (Jollie decl., ¶ 3 & Exh. A.) On May 22, 2026, defendant served his responses to the RFAs. (Jollie decl., ¶ 4 & Exh. B.) Following several attempts at meeting and conferring, as well as several mutual extensions of time, defendant did not serve supplemental responses. (Jollie decl., ¶¶ 6-12 & Exhs. C-E.)

On August 11, 2026, plaintiff filed his motion to compel further responses to RFAs Nos. 26, 27, 31, 37, 38, 41, and 42.

On September 8, 2026, defendant filed his opposition to the motion to compel further responses to the RFAs.

Also on August 11, 2026, plaintiff filed his motion to compel further response to SROG No. 41 and FROG No. 17.1.

Defendant did not file any opposition or other response to the motion to compel further responses to the SROG or FROG.

Analysis:

"Unless otherwise limited by order of the court in accordance with this title, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property." (Code Civ. Proc., § 2017.010.)

"A trial court must be mindful of the Legislature's preference for discovery over trial by surprise, [and] must construe the facts before it liberally in favor of discovery. . . ." (Williams v. Superior Court (2017) 3 Cal.5th 531, 540.)

Requests for Admissions

As an initial observation, the court finds Craigwell's meet and confer efforts sufficient.

"Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by a written request that any other party to the action admit the genuineness of specified documents, or the truth of specified matters of fact, opinion relating to fact, or application of law to fact. A request for admission may relate to a matter that is in controversy between the parties." (Code Civ. Proc., § 2033.010.)

RFAs "differ fundamentally from other forms of discovery. Rather than seeking to uncover information, they seek to eliminate the need for proof." (Murillo v. Superior Court (2006) 143 Cal.App.4th 730, 735.)

"The party to whom requests for admission have been directed shall respond in writing under oath separately to each request. Each response shall answer the substance of the requested admission, or set forth an objection to the particular request." (Code Civ. Proc. § 2033.210, subds. (a-b).)

" "[S]ince requests for admissions are not limited to matters within personal knowledge of the responding party, that party has a duty to make a reasonable investigation of the facts before answering items which do not fall within his personal knowledge. [Citations.] " " [Citation.]" (Grace v. Mansourian (2015) 240 Cal.App.4th 523, 529.)

The RFAs in dispute are Nos. 26, 27, 31, 37, 38, 41, and 42. They read as follows:

"Admit that on February 11, 2024, YOU were issued the CRASH CITATION by the Santa Barbara Police Department for violating California Vehicle Code Section 22350 (unsafe speed) in connection with the INCIDENT." (RFA No. 26.)

"Admit that the CRASH CITATION was corrected to reflect that YOUR estimated speed at the time of the INCIDENT was approximately 70 miles per hour." (RFA No. 27.)

"Admit that on December 8, 2024, approximately ten months after the INCIDENT, YOU were issued Citation No. RQ41168 by the California Highway Patrol for violating California Vehicle Code Section 22349(a) (speeding in excess of 65 miles per hour)." (RFA No. 31.)

"Admit that Citation No. S331068 also cited YOU for having no front license plate on YOUR VEHICLE in violation of the California Vehicle Code." (RFA No. 37.)

"Admit that on April 10, 2025, YOU were issued Citation No. RW45761 by the California Highway Patrol for violating California Vehicle Code Section 22349(a) (speeding in excess of 65 miles per hour)." (RFA No. 38.)

"Admit that between February 11, 2024, and August 19, 2025, YOU received at least four separate traffic citations." (RFA No. 41.)

"Admit that on January 20, 2026, YOU were issued Citation No. SE104561 by the Santa Barbara County Sheriff's Office for violating California Vehicle Code Section 22350 (unsafe speed)." (UMF No. 42.)

To each of the requests, Bartlett responded:

“Objection. The request is vague and ambiguous, overbroad as to time and/or scope; unduly burdensome, oppressive, and calculated only to annoy and harass; is unreasonably cumulative and duplicative; calls for speculation; calls for information that is neither relevant to the subject matter of this action nor reasonably calculated to lead to the discovery of admissible evidence; calls for information equally available to the propounding party; calls for expert opinion; and seeks information protected by the attorney-client privilege and/or attorney work product doctrine.

Without waiving the foregoing objections, Responding Party responds as follows: After a reasonable inquiry concerning the matter in this request, the information known or readily obtainable is insufficient to enable Responding Party to admit or deny the matter. Responding Party therefore responds pursuant to Code of Civil Procedure section 2033.220(c).

Discovery and investigation are ongoing, and Responding Party reserves the right to supplement or amend this response as additional information becomes available.”

The first glaring issue with the responses is that the objections are boilerplate and entirely without merit, which is itself sanctionable pursuant to Code of Civil Procedures section 2023.010, subdivision (e). The objections are overruled.

In opposing the motion, Bartlett argues that: “Defendant does not claim to have ignorance of the citations. The Defendant simply is unable to admit or deny the specifics of each citation.” The assertion is simply not credible. If citations were issued, and Bartlett concedes that they were issued, he has an obligation to so admit. If he lacks details regarding specifically what the citations say, he has an obligation to obtain that information. The RFAs are not asking Bartlett to concede the truth of what the citations say, only to admit that they exist. The requests are clearly allowable.

Bartlett’s responses are evasive and improper. He will be ordered to provide further, code-compliant, responses to each of the RFAs, without objections.

“The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2033.290, subd. (d).)

Craigwell seeks sanction in the amount of \$960.00, consisting of 2 hours researching and preparing the motion, an anticipated 1 hour reviewing the opposition, preparing a reply, and appearing at the hearing. Plaintiff’s counsel charges a reasonable hourly rate of \$300.00 per hour and also seeks to be reimbursed for the filing fee of \$60.00. The request is reasonable. Bartlett did not act with any amount of justification in providing the evasive responses and no other circumstances make the imposition of sanctions unjust. Sanctions will be awarded in favor of Craigwell and against Bartlett in the requested amount.

Interrogatories

Craigwell seeks further responses to special interrogatory (SROG) No. 41, and form interrogatory (FROG) No. 17.1.

As noted above, Bartlett has failed to oppose the motion to compel further responses.

Code of Civil Procedure, section 2030.010 provides, “(a) Any party may obtain discovery within the scope delimited by Chapter 2 (commencing with Section 2017.010), and subject to the restrictions set forth in Chapter 5 (commencing with Section 2019.010), by propounding to any other party to the action written interrogatories to be answered under oath. (b) An interrogatory may relate to whether another party is making a certain contention, or to the facts, witnesses, and writings on which a contention is based. An interrogatory is not objectionable because an answer to it involves an opinion or contention that relates to fact or the application of law to fact, or would be based on information obtained or legal theories developed in

anticipation of litigation or in preparation for trial.”

SROG No. 41 requires Bartlett to:

“Identify each and every traffic citation, violation, or infraction YOU have received since YOUR deposition on August 19, 2025, to the present, including the date of the citation, the issuing agency, the citation number, the code section violated, and the disposition of each citation.”

Bartlett responded:

“Objection. This interrogatory is vague and ambiguous as to time and scope, overbroad, unduly burdensome and oppressive, and an invasion of privacy. The interrogatory is not reasonably calculated to lead to the discovery of admissible evidence to the extent it seeks information unrelated to the INCIDENT.

Discovery and investigation are ongoing, and Responding Party reserves the right to supplement or amend this response as additional information becomes available.”

Craigwell argues: “This case arises out of a motor vehicle incident and Plaintiff claims that Defendant’s record of unsafe driving-before, after, and during the incident-warrants punitive damages. Accordingly, interrogatories that seek information concerning Defendant’s driving record are reasonably calculated to the discovery of relevant evidence.” (Sep. Stmt., p. 3, ll. 8-12.)

Craigwell has shown that the SROG is reasonably calculated to the discovery of admissible evidence. He does not need to show that the requested information is itself admissible. It is now for Bartlett to justify his boilerplate objections, as has long been the law in California.

“While the party propounding interrogatories may have the burden of filing a motion to compel if it finds the answers it receives unsatisfactory, the burden of justifying any objection and failure to respond remains at all times with the party resisting an interrogatory. (Coy v. Superior Court (1962) 58 Cal.2d 210, 220-221.)” (Williams v. Superior Court, supra, 3 Cal.5th at p. 541.)

Bartlett has not justified any of his objections. The motion to compel a further response to SROG No. 41 will be granted. Bartlett will be ordered to provide a further, code-compliant, response, without objections.

As noted above, Craigwell also seeks a further response to FROG 17.1. The separate statement argues: “Defendant’s responses to Requests for Admission Nos. 26, 27, 29, 30, 31, 32, 33, 35, 36, 37, 38, 39, 40, 41, 42, 43, 44, and 45 were not unqualified admissions, they consisted of either outright denials or claims of insufficient information.” (Sep. Stmt., p. 9, ll. 11-13.) However, Craigwell does not include the text of the RFAs in the separate statement.

A separate statement is required to be filed in support of a motion to compel further responses to interrogatories. (Cal. Rules of Court, rule 3.1345(a)(2).)

“A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue. The separate statement must be full and complete so that no person is required to review any other document in order to determine the full request and the full response. Material must not be incorporated into the separate statement by reference. The separate statement must include--for each discovery request (e.g., each interrogatory, request for admission, deposition question, or inspection demand) to which a further response, answer, or production is requested--the following:

- (1) The text of the request, interrogatory, question, or inspection demand;
- (2) The text of each response, answer, or objection, and any further responses or answers;
- (3) A statement of the factual and legal reasons for compelling further responses, answers, or production as to each matter in dispute;
- (4) If necessary, the text of all definitions, instructions, and other matters required to understand each discovery request and the responses to it;
- (5) If the response to a particular discovery request is dependent on the response given to another discovery request, or if the reasons a further response to a particular discovery request is deemed necessary are based on the response to some other discovery request, the other request and the response to it must be set forth; and
- (6) If the pleadings, other documents in the file, or other items of discovery are relevant to the motion, the party relying on them must summarize each relevant document." (Cal. Rules of Court, rule 3.1345(c); italics added.)

Failure to comply with the requirements of California Rules of Court, rule 3.1345 is grounds for denying a motion to compel further responses to discovery. (see *Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 893.)

Craigwell's separate statement is non-compliant in that it does not include all of the information required to understand the discovery request and its response. FROG No. 17.1 is entirely dependent on the responses to the RFAs and, as such, the RFAs must be included in the separate statement. Because the separate statement is non-compliant with respect to FROG 17.1, the motion will be denied as to that FROG.

"The court shall impose a monetary sanction . . . against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2030.300, subd. (d).)

As Craigwell was only partially successful in the motion to compel further responses to interrogatories, no sanctions will be issued in connection with that motion.

Judges

Judge Colleen Sterne

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